

APPENDIX C & D

Appendix

- C Solicitation Requirements Review (SRR) Request
- D Guidelines for Assessment of Proposer Labor Law/Payroll Violations

SOLICITATION REQUIREMENTS REVIEW (SRR) REQUEST

Proposer requesting a Solicitation Requirements Review must submit this form to the County within the timeframe identified in the solicitation document.

Proposer/Bidder Name:	Date of Request:
Solicitation Title: Custodial Services	Solicitation No.: 759-SH

A **Solicitation Requirements Review** is being requested because the Proposer asserts that they are being unfairly disadvantaged for the following reason(s): *(check all that apply)*

- ☐ Application of **Minimum Mandatory Requirements**
- ☐ Application of **Business Requirements**
- ☐ Application of **Evaluation Criteria**
- ☐ Due to **unclear instructions**, the process may result in the County not receiving the best possible responses from prospective Proposers.

For each area contested, Proposer must explain in detail the factual reasons for the requested review. *[Attach supporting documentation and specify the underlying authority of the person or entity submitting a proposal (e.g., letterhead, business card, etc.).]*

Request submitted by:

Name:		Title:	
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<i>For County use only</i>	
Date SRR Request:	_____
Received by County:	_____
Solicitation Released:	_____
Reviewed by:	_____

GUIDELINES FOR ASSESSMENT OF PROPOSER LABOR LAW/PAYROLL VIOLATIONS

DEDUCTION CATEGORIES	RANGE OF DEDUCTION (Deduction is taken from Proposer's Final Evaluation Score)
MAJOR County determination, based on the Assessment Criteria, that Proposer has a record of very serious violations.*	6 - 10% Consider investigating a finding of Proposer non-responsibility**
MINOR County determination, based on the Assessment Criteria, that Proposer has a record of relatively minor violations.*	1 - 5%
NONE County determination, based on the Assessment Criteria, that Proposer does not have a record of violations.*	0

Assessment Criteria

* A "Labor Law/Payroll Violation" includes violations of any federal, state or local statute, regulation or ordinance pertaining to wages, hours, working conditions such as minimum wage, prevailing wage, living wage, the Fair Labor Standards Act, employment of minors, or unlawful employment discrimination. The County may deduct points from a Proposer's final evaluation score only for Labor Law/Payroll Violations with disposition by a public entity within the past three years of the proposal due date.

The assessment and determination of whether a violation is "Major", "Minor", or Non-existent ("None"), and the assignment of a percentage deduction will include, but not be limited to, consideration of the following criteria and variables:

- Health and/or safety impact,
- Number of occurrences,
- Identified patterns in occurrences,
- Dollar amount of lost/delayed wages,
- Assessment of any fines and/or penalties by public entities, and/or
- Proportion to the volume and extent of services provided (e.g., number of contracts, number of employees, number of locations, etc.).

****[County Code Title 2, Chapter 2.202.030](#) sets forth criteria for making a finding of Contractor non-responsibility which are not limited to the above situations.**